

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1197

Introduced by Storer, 43; Brandt, 32; Sanders, 45; Strommen, 47.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to hunting permits; to amend section 37-455,
- 2 Revised Statutes Supplement, 2025; to change provisions relating to
- 3 limited landowner permits; and to repeal the original section.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 37-455, Revised Statutes Supplement, 2025, is
2 amended to read:

3 37-455 (1) The commission may issue a limited permit for deer,
4 antelope, wild turkey, or elk to a person who is a qualifying landowner
5 or leaseholder or a member of such person's immediate family as described
6 in this section. The commission may issue nonresident landowner limited
7 permits after preference has been given for the issuance of resident
8 permits as provided in rules and regulations adopted and promulgated by
9 the commission. Except as provided in subsection (4) of this section, a
10 permit shall be valid during the predetermined period established by the
11 commission pursuant to sections 37-447 to 37-450, 37-452, 37-456, or
12 37-457. Upon receipt of an application in proper form as prescribed by
13 the rules and regulations of the commission, the commission may issue (a)
14 a limited deer, antelope, or wild turkey permit valid for hunting on all
15 of the land which is owned or leased by the qualifying landowner or
16 leaseholder if such lands are identified in the application or (b) a
17 limited elk permit valid for hunting on the entire elk management unit of
18 which the land of the qualifying landowner or leaseholder included in the
19 application is a part.

20 (2)(a) The commission shall adopt and promulgate rules and
21 regulations prescribing procedures and forms and create requirements for
22 documentation by an applicant or permittee (i) to determine whether the
23 applicant or permittee is a Nebraska resident and is a qualifying
24 landowner or leaseholder of the described property or is a member of the
25 immediate family of such qualifying landowner or leaseholder and (ii) to
26 allow a Nebraska resident landowner to transfer a permit to a designee of
27 the landowner for a fee equal to the fee for the original permit. The
28 commission may adopt and promulgate rules and regulations that create
29 requirements for documentation to designate ~~one qualifying landowner~~
30 ~~among~~ partners of a partnership or officers or shareholders of a
31 corporation that owns or leases eighty acres or more of farm or ranch

1 land for agricultural purposes and among beneficiaries of a trust that
2 owns or leases eighty acres or more of farm or ranch land for
3 agricultural purposes as qualifying landowners. Only a person who is a
4 qualifying landowner or leaseholder or a member of such person's
5 immediate family may apply for a limited permit. An applicant may apply
6 for no more than one permit per species per year except as otherwise
7 provided in subsection (4) of this section and the rules and regulations
8 of the commission. For purposes of this section, member of a person's
9 immediate family means and is limited to the spouse of such person, any
10 child or stepchild of such person or of the spouse of such person, any
11 spouse of any such child or stepchild, any grandchild or stepgrandchild
12 of such person or of the spouse of such person, any spouse of such
13 grandchild or stepgrandchild, any sibling of such person sharing
14 ownership in the property, and any spouse of any such sibling.

15 (b) The conditions applicable to permits issued pursuant to sections
16 37-447 to 37-450, 37-452, 37-456, or 37-457, whichever is appropriate,
17 shall apply to limited permits issued pursuant to this section, except
18 that the commission may pass commission orders for species harvest
19 allocation pertaining to the sex and age of the species harvested which
20 are different for a limited permit than for other hunting permits. For
21 purposes of this section, white-tailed deer and mule deer shall be
22 treated as one species.

23 (3)(a) To qualify for a limited permit to hunt deer or antelope, the
24 applicant shall be a Nebraska resident who (i) owns or leases eighty
25 acres or more of farm or ranch land for agricultural purposes or a member
26 of such person's immediate family or (ii) is a ~~the~~ partner, officer,
27 shareholder, or beneficiary of ~~designated as the qualifying landowner by~~
28 a partnership, corporation, or trust as provided in the rules and
29 regulations under subdivision (2)(a) of this section or a member of the
30 immediate family of a ~~the~~ partner, officer, shareholder, or beneficiary.
31 The number of limited permits issued annually per species for each farm

1 or ranch shall not exceed the total acreage of the farm or ranch divided
2 by eighty. The fee for a limited permit to hunt deer or antelope shall be
3 one-half the fee for the regular permit for such species.

4 (b) A nonresident of Nebraska who owns three hundred twenty acres or
5 more of farm or ranch land in the State of Nebraska for agricultural
6 purposes or a member of such person's immediate family may apply for a
7 limited deer or antelope permit. The number of limited permits issued
8 annually per species for each farm or ranch shall not exceed the total
9 acreage of the farm or ranch divided by three hundred twenty. The fee for
10 such a permit to hunt deer or antelope shall be one-half the fee for a
11 nonresident permit to hunt such species.

12 (c) The commission may adopt and promulgate rules and regulations
13 providing for the issuance of an additional limited deer permit to a
14 qualified individual for the taking of a deer without antlers at a fee
15 equal to or less than the fee for the original limited permit.

16 (4)(a) In addition to any limited permit to hunt deer issued to a
17 qualifying landowner under subsection (3) of this section, the commission
18 shall issue up to eight limited permits to hunt deer during the three
19 days of Saturday through Monday immediately preceding the opening day of
20 firearm deer hunting season to any qualifying landowner meeting the
21 requirements of subdivision (b) of this subsection and designated members
22 of his or her immediate family. The fee for each permit issued under this
23 subsection shall be five dollars. Permits shall be issued subject to the
24 following:

25 (i) No more than eight permits may be issued per qualifying
26 landowner to the landowner or designated members of his or her immediate
27 family, except that no more than one permit shall be issued per person
28 for the qualifying landowner or any designated member of his or her
29 immediate family;

30 (ii) Of the eight permits that may be issued, no more than six
31 permits may be issued to persons who are younger than nineteen years of

1 age and no more than two permits may be issued to persons who are
2 nineteen years of age or older; and

3 (iii) For a Nebraska resident landowner, the number of permits
4 issued shall not exceed the total acreage of the farm or ranch divided by
5 eighty, and for a nonresident landowner, the number of permits issued
6 shall not exceed the total acreage of the farm or ranch divided by three
7 hundred twenty.

8 (b) For purposes of this subsection, the qualifying criteria for a
9 Nebraska resident described in subdivisions (3)(a)(i) and (ii) of this
10 section and the ownership criteria for a nonresident of Nebraska
11 described in subdivision (3)(b) of this section apply.

12 (c) The commission may adopt and promulgate rules and regulations to
13 carry out this subsection.

14 (5)(a) To qualify for a limited permit to hunt wild turkey, the
15 applicant shall be a Nebraska resident who (i) owns or leases eighty
16 acres or more of farm or ranch land for agricultural purposes or a member
17 of such person's immediate family or (ii) is a the partner, officer,
18 shareholder, or beneficiary of ~~designated as the qualifying landowner by~~
19 a partnership, corporation, or trust as provided in the rules and
20 regulations under subdivision (2)(a) of this section or a member of the
21 immediate family of a the partner, officer, shareholder, or beneficiary.
22 The number of limited permits issued annually per season for each farm or
23 ranch shall not exceed the total acreage of the farm or ranch divided by
24 eighty. An applicant may apply for no more than one limited permit per
25 season. The fee for a limited permit to hunt wild turkey shall be one-
26 half the fee for the regular permit to hunt wild turkey.

27 (b) A nonresident of Nebraska who owns three hundred twenty acres or
28 more of farm or ranch land in the State of Nebraska for agricultural
29 purposes or a member of such person's immediate family may apply for a
30 limited permit to hunt wild turkey. Only one limited wild turkey permit
31 per three hundred twenty acres may be issued annually for each wild

1 turkey season under this subdivision. The fee for such a permit to hunt
2 shall be one-half the fee for a nonresident permit to hunt wild turkey.

3 (6)(a) To qualify for a limited permit to hunt elk, (i) the
4 applicant shall be (A) a Nebraska resident who owns three hundred twenty
5 acres or more of farm or ranch land for agricultural purposes, or is a
6 ~~the~~ partner, officer, shareholder, or beneficiary of ~~designated as the~~
7 ~~qualifying landowner by~~ a partnership, corporation, or trust as provided
8 in the rules and regulations under subdivision (2)(a) of this section,
9 (B) a Nebraska resident who leases six hundred forty acres or more of
10 farm or ranch land for agricultural purposes or has a combined total of
11 six hundred forty leased and owned acres of farm or ranch land used for
12 agricultural purposes, or is a ~~the~~ partner, officer, shareholder, or
13 beneficiary of ~~designated as the qualifying landowner by~~ a partnership,
14 corporation, or trust as provided in the rules and regulations under
15 subdivision (2)(a) of this section, (C) a nonresident of Nebraska who
16 owns at least one thousand two hundred eighty acres of farm or ranch land
17 for agricultural purposes, or is a ~~the~~ partner, officer, shareholder, or
18 beneficiary of ~~designated as the qualifying landowner by~~ a partnership,
19 corporation, or trust as provided in the rules and regulations under
20 subdivision (2)(a) of this section, or (D) a member of such owner's or
21 lessee's immediate family and (ii) the qualifying farm or ranch land of
22 the applicant shall be within an area designated as an elk management
23 zone by the commission in its rules and regulations.

24 (b) An applicant shall not be issued a limited bull elk permit more
25 than once every three years, and the commission may give preference to a
26 person who did not receive a limited elk permit or a specified type of
27 limited elk permit during the previous years.

28 (c) The fee for a resident landowner limited permit to hunt elk
29 shall not exceed one-half the fee for the regular permit to hunt elk. The
30 fee for a nonresident landowner limited permit to hunt elk shall not
31 exceed three times the cost of a resident elk permit.

1 (d) The number of applications allowed for limited elk permits for
2 each farm or ranch shall not exceed the total acreage of the farm or
3 ranch divided by the minimum acreage requirements established for the
4 property. No more than one person may qualify for the same described
5 property.

6 **Sec. 2.** Original section 37-455, Revised Statutes Supplement, 2025,
7 is repealed.